

Disclosure of Private Roads in Michigan

Property sellers in Michigan must disclose to buyers if the lot in a recorded plat or any parcel of unplatted land in unincorporated areas abuts a private road or street. This disclosure advises that the board of county road commissioners or any other public body hasn't accepted maintenance of the private road. Maintenance of the private road may fall on property owners, not the county or another government entity.

The private road disclosure must be separate from, but attached to, the instrument used to convey interest in the property. If the seller fails to properly disclose a private road, the contract is deemed voidable and can be cancelled at the buyer's discretion. The buyer isn't required to cancel the contract, but has the right to do so.